

# Data Access Agreement

WORKING DRAFT · PREPARED FOR ATTORNEY REVIEW

Botlien is currently in the process of incorporating as a Delaware corporation and has not yet completed formation. This Agreement is entered into together with, and incorporates by reference, the Parties' Mutual Non-Disclosure Agreement dated \_\_\_\_\_, 2026. Telemetry Data disclosed under this Agreement is Confidential Information under that Non-Disclosure Agreement.

This Data Access Agreement ("Agreement") is entered into as of \_\_\_\_\_, 2026 (the "Effective Date"), by and between **Botlien**, a business currently in formation as a Delaware corporation ("Botlien"), and \_\_\_\_\_, a \_\_\_\_\_ ("Operator") (each a "Party" and together the "Parties").

## 1. Purpose

Operator operates a fleet of commercial service or delivery robots under a robots-as-a-service ("RaaS") or similar arrangement. Botlien provides a software service that converts robot fleet telemetry into financial telemetry, including cash flow analysis, cash flow projections, and default or credit risk indicators (the "Service"). This Agreement governs Botlien's access to and use of Operator's robot telemetry data in connection with the Service.

## 2. Definitions

**2.1** "Telemetry Data" means operational data generated by Operator's robot fleet and made available through a robot manufacturer's cloud or open API platform (such as, without limitation, Pudu, Gausium, or a substantially similar platform), including task completion records, uptime and utilization statistics, mileage, runtime, fault or incident logs, and related fleet identifiers.

**2.2** "Excluded Data" means Operator's bank account information, payment card data, financial statements, tax records, or any other financial or banking data. Excluded Data is not requested, required, or accepted by Botlien under this Agreement or in connection with the Service.

### 3. Scope of Data Access

**3.1** Botlien's access to Telemetry Data is limited to what Operator's robot manufacturer platform exposes through Operator's own account credentials or a scoped application key that Operator applies for, grants, and controls.

**3.2** Botlien will not request, and Operator will not be required to provide, any Excluded Data. Should Excluded Data be inadvertently transmitted to Botlien, Botlien will delete it promptly upon discovery and notify Operator.

**3.3** Operator may revoke Botlien's access to Telemetry Data at any time, for any reason, by providing written notice to Botlien or by revoking the underlying credentials or application key directly with the applicable robot manufacturer platform. Botlien will cease pulling new Telemetry Data within two (2) business days of revocation.

### 4. Use of Telemetry Data

**4.1** Botlien will use Telemetry Data solely to provide the Service to Operator, including generating cash flow analysis, cash flow projections, default or credit risk indicators, and quota or KPI tracking against Operator's own contracts.

**4.2** Botlien will not sell Operator's Telemetry Data to any third party.

**4.3** Botlien may use Telemetry Data in de-identified, aggregated form, such that Operator cannot reasonably be identified, to develop, improve, or benchmark the Service across Botlien's customer base generally.

**4.4** Botlien will not share Operator's identifiable Telemetry Data with any third party, including a lender, insurer, or other financial counterparty, without Operator's prior written consent.

### 5. Data Security

Botlien will maintain reasonable administrative and technical safeguards designed to protect Telemetry Data from unauthorized access, use, or disclosure, including encryption of data in transit and access limited to personnel who need it to provide the Service.

## 6. Representations and Warranties

**6.1** Each Party represents that it has the full right, power, and authority to enter into and perform this Agreement.

**6.2** Operator represents and warrants that it has the right to grant Botlien access to the Telemetry Data described in Section 3, including all necessary rights and authorizations under Operator's own agreements with its robot manufacturer and any third party whose consent may be required.

**6.3** Botlien represents and warrants that it will provide the Service in a professional manner consistent with generally accepted industry standards.

## 7. Indemnification

**7.1** Operator will defend, indemnify, and hold harmless Botlien from and against any third-party claim, loss, or liability arising out of or relating to Operator's breach of Section 6.2.

**7.2** Botlien will defend, indemnify, and hold harmless Operator from and against any third-party claim, loss, or liability arising out of Botlien's breach of Section 4 (Use of Telemetry Data) or Section 5 (Data Security).

**7.3** The indemnified Party must give the indemnifying Party prompt written notice of any such claim and reasonable cooperation, and the indemnifying Party will have control of the defense and settlement of the claim.

## 8. No Obligation, No License

Nothing in this Agreement obligates either Party to proceed with any transaction, pilot, or further business relationship. No license or other right to any intellectual property is granted by this Agreement, whether by implication or otherwise, except the limited right for Botlien to access and use Telemetry Data as set out in Sections 3 and 4.

## 9. Term and Termination

**9.1** This Agreement remains in effect for two (2) years from the Effective Date, or until terminated earlier by either Party on thirty (30) days' written notice, or automatically upon termination of the

Parties' Non-Disclosure Agreement referenced above.

**9.2** Upon termination or Operator's written request, Botlien will, within thirty (30) days, delete or return all Telemetry Data in its possession, except for copies retained as required by law or standard backup and archival procedures, which remain subject to this Agreement until deleted in the ordinary course.

## **10. Limitation of Liability**

Except for breaches of Section 3 (Scope of Data Access), Section 4 (Use of Telemetry Data), or a Party's indemnification obligations under Section 7, neither Party will be liable to the other for indirect, incidental, consequential, or punitive damages arising out of this Agreement.

## **11. Governing Law and Venue**

This Agreement is governed by the laws of the State of California, without regard to its conflict of laws principles. The Parties consent to the exclusive jurisdiction and venue of the state and federal courts located in California for any dispute arising out of or relating to this Agreement.

## **12. Notices**

Notices under this Agreement must be in writing and delivered by email to the address each Party designates in writing from time to time. Notices are deemed received when sent, unless the sending Party receives an automated delivery failure notice, in which case the sending Party must promptly attempt an alternate means of delivery.

## **13. Assignment**

Neither Party may assign this Agreement without the other Party's prior written consent, except that either Party may assign this Agreement without consent in connection with a merger, acquisition, or sale of substantially all of its assets, provided the assignee agrees in writing to be bound by this Agreement.

## **14. Severability**

If any provision of this Agreement is held invalid or unenforceable, the remaining provisions will remain in full force and effect, and the invalid or unenforceable provision will be reformed to the minimum extent necessary to make it enforceable while preserving its original intent.

## 15. Electronic Signatures; Counterparts

This Agreement may be executed electronically and in counterparts, each of which is deemed an original, and all of which together constitute one and the same instrument.

## 16. Entire Agreement

This Agreement, together with the Parties' Non-Disclosure Agreement referenced above, constitutes the entire agreement between the Parties regarding its subject matter and supersedes all prior discussions or agreements on that subject. Any amendment must be in writing and signed by both Parties.

### Botlien

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SIGNATURE

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NAME

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DATE

### Operator

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SIGNATURE

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NAME

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DATE

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*This is a working draft prepared to support onboarding conversations with RaaS operators connecting their fleet to Botlien. It has not been reviewed by an attorney. Have a real attorney review and finalize this document, together with the related Non-Disclosure Agreement, before sending it for signature or using it to govern any actual data-sharing relationship.*

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